

Insurance Regulatory and Development Authority of India (Insurance Surveyors and Loss Assessors) Regulations, 2015

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Insurance Regulatory and Development Authority of India (Insurance Surveyors and Loss Assessors) Regulations, 2015

UNION OF INDIA

India

Insurance Regulatory and Development Authority of India (Insurance Surveyors and Loss Assessors) Regulations, 2015

Rule

INSURANCE-REGULATORY-AND-DEVELOPMENT-AUTHORITY-OF-INDIA-INSURANCE-SURVEYORS-AND-LOSS-ASSESSORS-REGULATIONS-2015 of 2015

Published on 30 October 2015

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Insurance Regulatory and Development Authority of India (Insurance Surveyors and Loss Assessors) Regulations, 2015

Published vide Notification F. No. IRDAI/Reg/18/108/2015, dated 30.10.2015

Last Updated 8th November, 2019

F. No. IRDAI/Reg/18/108/2015. - In exercise of the powers conferred by clause (x) and (xa) of sub-section 2 of Section 114A read with Sections 42D, 42E and 64UM of the Insurance Act, 1938 (

4 of 1938

), and Sections 14 and 26 of the Insurance Regulatory and Development Authority Act, 1999 (

41 of 1999

), the Authority, in consultation with the Insurance Advisory Committee, hereby makes the following Regulations, namely:-

Chapter I

Preliminary

1.

Short title, commencement and application.

(1)

These Regulations may be called the Insurance Regulatory and Development Authority of India (Insurance Surveyors and Loss Assessors) Regulations, 2015.

(2)

They shall come into force on the date of their publication in the Official Gazette and shall apply to all licensed insurance Surveyors and Loss Assessors.

(3)

These Regulations supersede Insurance Surveyors and Loss Assessors (Licensing, Professional Requirements and Code of Conduct) Regulations, 2000 with effect from date of Gazette notification.

2.

Definitions.

- In these Regulations, unless the context otherwise requires, -

(1)

"Act" means the Insurance Act, 1938 (

4 of 1938

);

(2)

"Applicant" means a person who applies for the grant of a Surveyor and Loss Assessor license or renewal thereof;

(3)

"Authority" means the Insurance Regulatory and Development Authority of India (IRDAI) established under sub-section (1) of Section 3 of the Insurance Regulatory and Development Authority Act, 1999 (

41 of 1999

);

(4)

"Associate member" means any Licentiate Member and holding valid Surveyor and Loss Assessor license continuously for a period not less than 8 years and upon fulfilment of other criteria set out in Regulation 15(1) (a) (ii);

(5)

"Corporate Surveyor" means a company incorporated under the Companies Act, 2013 or a Firm formed under Partnership Act, 1932, or an LLP (Limited Liability Partnership) incorporated under LLP Act 2008 and who is licensed to act as Surveyor and Loss Assessor

(6)

"Designated Person" means an officer of the Authority so designated by the Authority to discharge the functions assigned to him under these Regulations;

(7)

"Fellow Member" means any Associate Member holding valid Surveyor and Loss Assessor license continuously for a period not less than 16 years and fulfils other criteria set out in Regulation 15(1)(a)(iii);

(8)

"Inspecting Authority" means the person(s) appointed by the Authority to inspect and investigate the affairs of any Surveyor and Loss Assessor;

(9)

"Institute" means the Indian Institute of Insurance Surveyors and Loss Assessors (IIISLA) promoted by IRDAI under Section 14(2)(f) of IRDA Act, 1999 and incorporated under Section 8 of the Companies Act, 2013.

(10)

"IRDA Act" means the Insurance Regulatory and Development Authority Act, 1999 (

41 of 1999

);

(11)

"Licentiate Member" means any person holding a valid license issued by the Authority to act as Surveyor and Loss Assessor and fulfils other criteria set out in Regulation 15(1)(a)(i).

(12)

"Member" means Student Member or Licentiate Member or Associate Member or Fellow Member of the Institute.

(13)

"Surveyor and Loss Assessor" means a person who is licensed by the Authority to act as Surveyor and Loss Assessor.

(14)

"Student Member" means any person who is Member of the Institute and who enrolls himself as a trainee with the Authority for seeking practical training to obtain a license to act as Surveyor and Loss Assessor;

(15)

"Membership level of a Surveyor and Loss Assessor" means level allotted by the Institute to a Member, based on the criteria set out in Regulation 15 of these Regulations

(16)

words and expressions used and not defined in these Regulations but defined in the Insurance Act, 1938 (4 of 1938

) or Insurance Regulatory and Development Authority Act, 1999 (

41 of 1999

) or the General Insurance Business (Nationalization) Act, 1972 (

57 of 1972

), or in any Rules or Regulations made under those Acts, shall have the meanings respectively assigned to them in those Acts, Rules, Regulations, as the case may be.

(17)

In these Regulations the use of the word "he", "him" , "him" or "his" wherever appearing shall mean and include "she", "her", "it" or "it's" as the case may be; and the singular shall be deemed to mean and include the plural.

Chapter II

Licensing Procedure

3.

Application for, and matters relating to, grant of license to individual Surveyors and Loss Assessors.

(1)

Every person who is a Student Member of the Institute and intending to act as a Surveyor and Loss Assessor in respect of general insurance business shall apply to the Authority for grant of License in FORM-IRDAI-1- AF as given in Schedule II to these Regulations.

(2)

Eligibility Criteria

(a)

Qualifications:

(i)

academic / technical/ professional/Insurance Qualifications given in Schedule I Annexure-1 of these Regulations.

(ii)

Other qualifications as may be specified by the Authority from time to time.

(iii)

Shall be a "Member" of the Institute.

(b)

Training :

(i)

Practical training for a period of not less than twelve months as specified in Regulation 17(1)

(ii)

Such other training which the Authority may specify from time to time.

Explanation. - Any person who has undergone the requisite training for obtaining a license to act as a Surveyor and Loss Assessor, as stated above may have to undergo such other training as may be specified by the Authority.

(c)

Examination. - Passing of relevant paper(s) of Surveyor and Loss Assessor Examination conducted by the Insurance Institute of India, Mumbai or any other Institute recognized by the Authority.

Explanation. - Any person who has, as on the date of notification of these Regulations, successfully completed the examination for obtaining a license to act as Surveyor and Loss Assessor, is exempt from taking examination once again stated under 3(2)(c) above.

(3)

Documents to be enclosed:

(a)

Application in Form-IRDAI-1AF duly complete in all respects.

(b)

Copy of Membership certificate issued by the Institute, indicating Student Membership No, Date of Issue, etc.

(c)

Recent passport photo

(d)

Copy of PAN Card

(e)

Address Proof

(f)

Proof of qualification (notarized)

(g)

Training completion certificate (in original)

(h)

Copy of quarterly reports (for the previous 4 quarters)

(i)

Copy of marks sheet in support of having passed the Surveyor and Loss Assessor examination as provided under Regulation 18 of these Regulations

(j)

No Objection Certificate from employer, if employed (in original)

(k)

Affidavit as stated at sl no 2 of FORM- IRDAI-1-AF (to be uploaded in soft form at the time of submission of application through online)

(l)

Self addressed envelope of 4.5"x10" with minimum of Rs.40 postage stamp

(m)

Demand draft, in case fee is paid by DD

(n)

Details of fee payment by RTGS/ NEFT, if paid through RTGS/ NEFT

(o)

Any other document/information that may be required by the Authority from time to time

(Copies of documents other than (f), (g), (j), (l), (m) and (n) shall be self-attested)

(4)

Disclosures:

(a)

Every licensed Surveyor and Loss Assessor is required to submit a declaration stating that he/she shall file with the Authority, any changes in the information submitted to the Authority within 15 days of such change and apply in the FORM-IRDAI-17-AF as given in Schedule II to these Regulations, for grant of modified license. The license issued by the Authority (in original) shall be surrendered at the time of application for grant of modified license.

(b)

Every licensed Surveyor and Loss Assessor shall submit such other information as may be required by the Authority from time to time.

(5)

Payment of fees. - The applicant shall pay fees as provided under Regulation 5, through online net banking / RTGS/ NEFT/ Demand Draft in favour of IRDAI and furnish evidence of payment.

(6)

Application to conform to the requirements. - An application, not complete in all respects and not conforming to the instructions specified in the application form and these Regulations, shall be rejected.

Provided that, before rejecting any such application, the applicant shall be given a reasonable opportunity to complete the application in all respects and rectify the errors, if any.

(7)

Furnishing of information, clarification and personal representation. - (a) The Authority may require an applicant to furnish any further information or clarification for the purpose of examination of the application, and, thereafter, in regard to any other matter as may be deemed necessary by the Authority.

(b)

The applicant shall, if so required, appear before the Authority for a personal representation in connection with their application.

(8)

Consideration of application. - (a) The Authority, while considering the application made under Regulation 3(1) for grant of license as a Surveyor and Loss Assessor, take into consideration all matters relating to the duties, responsibilities and functions of Surveyor and Loss Assessor and satisfy itself that the applicant is a fit and proper person to be granted a license.

(b)

Without prejudice to the foregoing, the Authority shall take into account the following and satisfy itself that the applicant:

(i)

meets all the requirements of Section 64UM read with Section 42D of the Act and fulfils the eligibility criteria set out in Regulation 3 of these Regulations.

(ii)

has not been refused in the past one year the grant of a license as Surveyor and Loss Assessor by the Authority

(iii)

is not suffering from any of the disqualifications specified under Section 42D of the Act;

(iv)

possesses the specified qualifications, has undergone practical training and has passed an examination conducted by the examination body.

(9)

Grant of license. - The Authority on being satisfied that the applicant is eligible for grant of license, shall grant the same in FORM-IRDAI-2-LF as given in the Schedule II to these Regulations, mentioning the level of membership granted by the Institute, particular class/ department or subject of general insurance business namely, fire, marine cargo, marine hull, engineering, motor, miscellaneous, crop insurance and loss of profit.

(10)

Validity of License. - The license granted shall be valid for a period of three years.

(11)

A Surveyor and Loss Assessor, whose license has been cancelled or suspended for any reason, may submit an application for issuance of license, after the expiry of one year from the date of such cancellation or suspension, and such application shall be treated as a fresh case, and, accordingly, the applicant shall satisfy all the requirements of Regulation 3(2) above.

4.

Application for grant of fresh Corporate Surveyor and Loss Assessor License and related matters.

(1)

An applicant desiring to obtain a Corporate Surveyor and Loss Assessor license shall do so in Form- IRDAI-3-AF as given in the Schedule II to these Regulations.

(2)

Eligibility Criteria. - the directors/ partners of the company/ firm, shall conform mutatis-mutandis to the eligibility criteria set out in Regulation 3 of these Regulations.

(3)

In addition, the Authority shall satisfy itself that the application submitted is complete in all respects, satisfies all the applicable requirements of Section 64UM read with Section 42D of the Act.

Provided that none of the directors or partners suffers from any of the disqualifications mentioned in Section 42D of the Act.

(4)

There shall be at least two directors/ partners in the company / firm at any point of time who are members of the Institute and are licensed to act as Surveyor and Loss Assessor. The department and level of membership of the director/ partner under their individual Surveyor and Loss Assessor license shall become the department and level of Membership of the Company/ firm. Any licensed Surveyor and Loss Assessor appointed as director/ partner of a company/ firm seeking application for grant of corporate surveyor license, shall undertake survey jobs and issue survey reports only in the capacity of director/ partner of the applicant company/ firm.

(5)

Documents to be enclosed.- (a) Application in Form-IRDAI-3-AF duly completed in all respects.

(b)

Copy of Membership certificate issued by the Institute to the directors/ partners, indicating Membership No, Date of Issue etc.

(c)

one recent photo of directors/ partners

(d)

Copy of Surveyor and Loss Assessor license of directors/ partners

(e)

Copy of certificate of incorporation issued by ROC in case of company

(f)

Copy of Partnership deed in case of a firm duly signed by all the partners

(g)

Copy of Memorandum and Articles of association of the company

(h)

Copy of Form no DIR-12 filed with ROC

(i)

Copy of Form no INC-22/23 filed with ROC

(j)

Copy of Form no 20B/Form SH7, as the case may be, filed with ROC

(k)

Copy of TAN

(l)

Proof of qualification of directors/partners

(m)

Copy of PAN No and Address Proof of directors/ partners

(n)

Affidavit as stated under sl no.2 of FORM-IRDAI-3-AF including whether any person, directly or indirectly connected with the applicant, has been refused in the past the grant of a license/ registration by the Authority.

(o)

Fit & Proper statement made by the directors/ partners

(p)

Self addressed envelope of 4.5"x10" with minimum of Rs.40 postage stamp

(q)

Demand draft, in case fee is paid by DD

(r)

Details of fee payment by RTGS/NEFT, if paid through RTGS/NEFT

(s)

Any other document/information that may be required by the Authority from time to time (Copies of documents at sl. no (d) to (m) shall be notarized)

(6)

Disclosures. - (1) Required to submit a declaration stating that prior to joining the applicant company/ firm, the individual Surveyors and Loss Assessor shall complete all survey jobs entrusted to them within the timelines provided under IRDA (Protection of Policyholder's Interest) Regulations, 2002 and that upon grant of Corporate Surveyor and Loss Assessor license, such individual Surveyor and Loss Assessors shall henceforth work only under the Corporate Surveyor and Loss Assessor license.

(2)

Required to submit a declaration stating that the directors/ partners shall submit information about resignation/ death/ suspension of director/ partner, change in share holding pattern and such other material changes to the Authority and apply in FORM-IRDAI-18-AF as given in the Schedule II to these Regulations within 15 days of such change for grant of modified license. The license issued by the Authority (in original) to the company/ firm shall be surrendered at the time of application for grant of modified license.

(3)

Require to submit details of those Surveyor and Loss Assessors who are employed in the registered office and branch office/s of the company/firm to conduct survey jobs on behalf of the company/ firm.

(4)

Such other additional requirements as may be specified by the Authority from time to time.

(7)

Payment of fees. - Shall pay fees as provided under Regulation 5, through online net banking/ RTGS/ NEFT/ Demand Draft in favour of IRDAI and furnish evidence of payment.

(8)

Application to conform to the requirements. - An application, not complete in all respects and not conforming to the instructions specified in the application form and these Regulations, shall be rejected.

Provided that, before rejecting any such application, the applicant shall be given a reasonable opportunity to complete the application in all respects and rectify the errors, if any.

(9)

Furnishing of information, clarification and personal representation. - The Authority may require an applicant to furnish any further information or clarification for the purpose of disposal of the application, and, thereafter, in regard to any other matter as may be deemed necessary by the Authority.

(10)

The applicant shall, if so required, appear before the Authority for a personal representation in connection with their application.

(11)

Consideration of application. - The Authority while considering the application made under Regulation 4(1) for grant of license as a Corporate Surveyor and Loss Assessor, take into consideration all matters relating to the duties, responsibilities and functions of Surveyor and Loss Assessor and satisfy itself that the applicant is a fit and proper person to be granted a license.

(12)

Without prejudice to the foregoing, the Authority shall take into account the following and satisfy itself that;

(a)

the applicant meets all the requirements of Section 64UM read with Section 42D of the Act and fulfils the eligibility criteria set out in Regulation 4(2), 4(3) and 4(4) of these Regulations;

(b)

none of the directors or partners suffers from any of the disqualifications mentioned in Section 42D of the Act;

(c)

the applicant has not been refused in the past one year the grant of a license/ registration by the Authority;

(d)
directors/ partners of the company/ firm are Fit and Proper based on the statement in Schedule- I Annexure 2 of these Regulations;

(e)
the main object of the company/firm shall be to carry out insurance survey and loss assessment;

(f)
the name of the company or firm shall include the words "Insurance Surveyor and Loss Assessors"

(g)
the aggregate holdings of equity shares held by a foreign investor including portfolio investors shall be disclosed at the time of making the application for grant of license, which shall be as prescribed by the Central Government from time to time;

(h)
the same promoter/ subscriber of the applicant does not have more than one Corporate Surveyor and Loss Assessor license. "Promoter/ Subscriber" shall be as defined in the "Companies Act, 2013".

(i)
whether any person, directly or indirectly connected with the applicant, has been refused in the past the grant of a license/ registration by the Authority.

Explanation. - For the purposes of this sub-clause, the expression "directly or indirectly connected" means in the case of a firm or a company or a body corporate, an associate, a subsidiary, an interconnected undertaking or a group company of the applicant. It is hereby clarified that these terms shall have the same meanings as ascribed to them in the Companies Act, 2013 or the Competition Act, 2002, as the case may be.

(13)
Grant of license. - The Authority, on being satisfied that the applicant is eligible for grant of license, shall grant the same in FORM-IRDAI-4-LF as given in the Schedule-II to these Regulations, indicating the departments and membership level of the corporate surveyor and loss assessor.

(14)
Validity of License. - The license granted shall be valid for a period of three years.

(15)
Conditions of license. - (1) Upon grant of Corporate Surveyor and Loss Assessor license, the company/ firm can undertake survey jobs only in those department and level of membership displayed against each of the director/ partner in the Corporate Surveyor and Loss Assessor license issued by the Authority.

(2)
None of the directors or partners of a Corporate Surveyor and Loss Assessor shall be appointed as director or partner in another Corporate Surveyor and Loss Assessor company / firm.

(3)
Individual Surveyor and Loss Assessor who is working as an employee of a company/firm shall undertake survey jobs only of that company/ firm with whom he/she is employed with. The employee shall undertake survey jobs only in those departments and level of membership allotted to him/ her under his/ her individual license.

(4)
The company/ firm shall undertake reasonable number of survey jobs which are commensurate with their resources and the number of individual Surveyors and Loss Assessors they employ.

(5)
The Corporate Surveyor and Loss Assessor company/ firm shall maintain records including in electronic form in the format specified by the Authority which shall capture claim-wise and individual Surveyor and Loss Assessor-wise details wherein each claim surveyed by the company/ firm is tagged to the individual Surveyor and Loss Assessor in the company/ firm. The corporate surveyor company/ firm shall put in place systems which allow regular access to such records and details by the Authority.

4A.
[Foreign Investment.

[Inserted by Notification No. F. No. IRDAI/Reg/13/164/2019, dated 30.10.2019 (w.e.f. 30.10.2015).]

- Every applicant, who is a company incorporated under the Companies Act,2013 and has a majority of shareholding of

foreign investors, shall furnish an undertaking as given in Schedule -AA.]

5.

Fee Structure.

- The fee payable to the Authority by fresh applicants for grant of license to act as Surveyors and Loss Assessors shall be one thousand Rupees plus applicable service tax as prescribed by Central Government from time to time.

6.

Application for grant of renewal license (Individual/ Corporate Surveyor and Loss Assessor) and related matters.

(1)

An application for renewal of Surveyor and Loss Assessor license including online submission of application for renewal, shall reach the Authority at least thirty days before the expiry of the period of validity thereof,

(a)

in FORM-IRDAI-5-AF (for individuals)

(b)

in FORM-IRDAI-6-AF (for Corporate Surveyor and Loss Assessors) as given in the Schedule-II to these Regulations, along with a renewal fee of one hundred rupees plus applicable service tax as prescribed by Central Government from time to time.

Provided that the Authority may, if it is satisfied that undue hardship would be caused otherwise, accept any application, within six months of its expiry on payment by the applicant of a penalty of seven hundred and fifty rupees.

Provided further that a license not so renewed ceases to exist. However, an application from such surveyor and loss assessor whose license has ceased to exist can be treated as fresh application and processed under Regulation 3 or Regulation 4, and such applicant shall be allotted Licentiate level of Membership in the license issued by the Authority.

(2)

The Authority may renew the license upon being satisfied that the applicant has complied with all the requirements as may be specified by the Authority from time to time, particularly those specified in Chapter II of these Regulations

(3)

Documents to be submitted

(a)

In case of Individual:

(i)

Application in Form-IRDAI-5-AF duly completed in all respects.

(ii)

Recent photo

(iii)

Copy of PAN Card

(iv)

Address Proof

(v)

Proof of qualification (notarized)

(vi)

No Objection Certificate from employer, if employed (in original)

(vii)

Work performance in Form-IRDAI-12 (to be uploaded in soft form for previous 3 financial years)

(viii)

Affidavit as stated under sl no 2 of FORM-IRDAI-5-AF

(ix)

Copy of Membership Certificate issued by the Institute.

(x)

Self addressed envelope of 4.5"x10" with minimum of Rs.40 postage stamp

(xi)

Demand draft, in case fee is paid by DD

(xii)

Details of fee payment by RTGS/ NEFT, if paid through RTGS/ NEFT

(xiii)

Any other document/information that may be required by the Authority from time to time

(Copies of documents at sl no (iii) to (ix) shall be notarized)

(xiv)

Proof of sole proprietor registration with local authorities, in case applying for sole proprietorship (notarized)

(b)

In case of corporate surveyors:

(i)

Application in Form- IRDAI-6-AF duly completed in all respects.

(ii)

one recent photo of directors/partners

(iii)

Copy of Surveyor and Loss Assessor license of directors/ partners and their Membership details

(iv)

Copy of Certificate of Incorporation issued by ROC in case of company

(v)

Copy of Partnership Deed in case of a firm duly signed by all the partners

(vi)

Copy of Memorandum and Articles of Association of the company

(vii)

Copy of Form no DIR-12 filed with ROC

(viii)

Copy of Form no INC-22/23 filed with ROC

(ix)

Copy of Form 20B/ Form SH7, as the case maybe, filed with ROC

(x)

Copy of TAN

(xi)

Proof of qualification of directors/partners

(xii)

Copy of PAN Card and Address Proof of directors/ partners

(xiii)

Affidavit as stated under sl no 4 of FORM-IRDAI-6-AF

(xiv)

Self addressed envelope of 4.5"x10" with minimum of Rs.40 postage stamp

(xv)

Work Performance of the company /firm (to be uploaded in soft form for previous 3 financial years) (as per Form - IRDAI - 12)

(xvi)

Demand Draft, in case fee is paid by DD

(xvii)

Details of fee payment by RTGS/NEFT, if paid through RTGS/NEFT

(xviii)

Any other document/information that may be required by the Authority from time to time

(xix)

Fit and proper statement as specified in Schedule-I, Annexure 2.

(Copies of documents at sl no (iii) to (xiii) shall be notarized)

(4)

The application for renewal of license shall be processed taking into account the eligibility criteria, existing, including those set out under Regulation 3 and 4, at the time of receipt of such application.

(5)

The Authority on being satisfied that the applicant is eligible for renewal of license, shall renew the same

(a)

in Form-IRDAI-7-LF in case of individuals including sole proprietor

(b)

in Form-IRDAI-8-LF in case of Corporate Surveyor and Loss Assessor in the format given in the Schedule-II to these regulations.

(6)

A license so renewed shall be valid for three years from the date of renewal unless cancelled earlier.

7.

Procedure where application for grant of license is rejected.

(1)

the application for grant of license can be rejected on the following grounds:

(a)

does not conform with or the applicant fails to comply with the provisions of the Act and these Regulations.

(b)

if the Authority is of the opinion that the grant of license is not in the interest of the policy holders.

Provided that before rejecting any such application, the applicant shall be given a reasonable opportunity of being heard.

(2)

Where the application for grant of license is rejected, a refund of 60% of the applicable fee received shall be made to the applicant.

(3)

The rejection of application as stated under (1) above, shall be communicated to the applicant within thirty days of such rejection, stating the grounds for rejection thereof.

(4)

Any applicant aggrieved by the decision of the Authority may make an appeal to Securities Appellate Tribunal, as per the procedure prescribed for such an appeal, within a period of forty-five days from the date on which a copy of the order made under Sub-Regulation (1) above is received by him.

8.

Procedure where application for renewal of license is refused.

(1)

The Authority may refuse the application for renewal of license to a Surveyor and Loss Assessor on any of the following grounds, if the applicant:

(a)

makes a statement which is false in material particulars with regard to the eligibility for obtaining license

(b)

if the applicant suffers from any of the disqualifications provided under Section 42D read with Section 64UM of the Act.

Provided that the Authority shall give a reasonable opportunity, to the person concerned, of being heard, before such refusal.

(2)

The refusal of license referred to in Sub-Regulation (1) above shall take effect from the date of such refusal and no Surveyor and Loss Assessor shall carry out any survey and loss assessment work thereafter, including the jobs on hand. All such pending jobs shall be returned by him/ it to the insurer or the insured, as the case may be.

(3)

Any applicant aggrieved by the decision of the Authority may make an appeal to Securities Appellate Tribunal, as per the procedure prescribed for such an appeal, within a period of forty-five days from the date on which a copy of the order made under Sub-Regulation (1) above is received by him.

(4)

A surveyor whose license renewal is refused for any reason, may submit an application for issuance of license, after the expiry of one year from the date of such refusal, and, such an application shall be treated as an application for grant of fresh license, and accordingly the applicant shall satisfy all the requirements stated under Regulation 3 or Regulation 4

as the case may be.

9.

Issue of Duplicate License.

(1)

A person to whom a license has been issued or renewed, shall, if such license is lost, destroyed or mutilated, make an application in FORM-IRDAI-9-AF given in the Schedule II to these Regulations to the Authority requesting for issuance of duplicate thereof, along with a fee as specified by the Authority.

(2)

The application referred to in Sub-Regulation (1) above shall contain full particulars of license and as to how the loss/destruction or mutilation has occurred, and the application shall be accompanied by mutilated pieces, if any, in possession of the person making the application.

(3)

The Authority, on being satisfied, may issue a duplicate license in FORM-IRDAI-10-LF as given in the Schedule-II to these Regulations.

(4)

The duplicate license so issued shall remain in force for the remainder of the period of validity of the license, unless cancelled earlier, and the duplicate shall bear an endorsement thereon that it is a duplicate.

Chapter III

Constitution and Functions of Surveyors and Loss Assessors Committee

10.

Constitution.

(1)

The Authority shall constitute a Committee to be called "Surveyors and Loss Assessors Committee" (herein after referred to as "the Committee"), for assisting the Authority on the matters and affairs relating to Insurance Surveyors and Loss Assessors.

(2)

The Committee shall consist of the following persons:-

(a)

an Officer of the Authority;

(b)

two representatives of the Surveyors and Loss Assessors;

(c)

a representative of Insurers from Public sector and a representative of insurers from Private sector

(d)

a representative of the policy holders;

(3)

The Committee will have tenure of three years and will be presided over by the officer of the Authority.

11.

Functions of the Committee.

(1)

The Committee shall perform the following functions:-

(a)

recommending the syllabus for examination and practical training requirements for persons to qualify as Surveyors and Loss Assessors;

(b)

recommending to the Authority for its consideration to recognise foreign qualifications and training for the purpose of grant of license to act as Surveyors and Loss Assessors;

(c)

improving and developing the status and standard of the profession of Surveyors and Loss Assessors;

(d)

coordinating with educational or other institutions, having as their objectives, wholly or partly, similar to those of the

profession of Surveyors and Loss Assessors, in such manner as may be conducive for the attainment of common objectives;

(e)

looking into the matters of professional misconduct, indiscipline, non-adherence to code of conduct by Surveyors and Loss Assessors;

(f)

discharging any other function, which may be entrusted by the Authority, from time to time.

(2)

The Committee may meet as frequently as necessary to conduct its affairs and the Officer of the Authority shall decide the venue, time and frequency of such meetings.

(3)

The members of the Committee, other than the officer of Authority will be entitled to such allowances as may be determined by the Authority from time to time.

12.

Appointment of Surveyors and Loss Assessors.

(1)

No person or a firm or a company shall act as a Surveyor and Loss Assessor without being licensed under Regulation 3 or Regulation 4, as the case may be.

(2)

Surveyors and Loss Assessors shall be appointed either by insurers or insured to assess loss under a policy of insurance in respect of

(a)

Motor insurance - above Rupees fifty thousand

(b)

Other than motor insurance - above Rupees one lakh

(3)

The above mentioned limit shall be reviewed every three years by the Authority.

(4)

Such appointment of a surveyor for assessment of loss shall be made within 72 hours from the time the occurrence of loss was known to the insurer or insured, as the case may be. Notice of such appointment shall be sent in writing to the insurer or insured as the case may be and shall form part of the claims settlement process.

(5)

A Surveyor and Loss Assessor shall assess losses of only those departments specified in his/her or its license.

Chapter IV

Duties and Responsibilities of a Surveyor and Loss Assessor

13.

It shall be the duty of every Licensed Surveyor and Loss Assessor to investigate, manage, quantify, validate and deal with losses (whether insured or not) arising from any contingency, and report thereon to the insurer or insured, as the case may be., All Licensed Surveyors and Loss Assessors shall carry out the said work with competence, objectivity and professional integrity and strictly adhere to the code of conduct as stipulated in these Regulations.

(1)

The following, shall, inter alia, be the duties and responsibilities of a Surveyor and Loss Assessor:-

(a)

declaring whether he has any interest in the subject-matter in question or whether it pertains to any of his relatives, business partners or through material shareholding;

Explanation. - For the purpose of this clause 'relatives' shall mean any of the relatives as defined in Subsection (77) of Section 2 of the Companies Act, 2013;

(b)

Bringing to the notice of the Authority, any change in the information or particulars furnished at the time of issuance of license, within a period not exceeding fifteen days from the date of occurrence of such change, that has a bearing on the license granted by the Authority

- (c) maintaining confidentiality and neutrality without jeopardising the liability of the insurer and claim of the insured;
- (d) conducting inspection and re-inspection of the property in question suffering a loss;
- (e) examining, inquiring, investigating, verifying and checking upon the causes and the circumstances of the loss in question including extent of loss, nature of ownership and insurable interest;
- (f) conducting spot and final surveys, as and when necessary and comment upon franchise, excess/under insurance and any other related matter;
- (g) estimating, measuring and determining the quantum and description of the subject under loss;
- (h) advising the insurer and the insured about loss minimisation, loss control, security and safety measures, wherever appropriate, to avoid further losses;
- (i) commenting on the admissibility of the loss as also observance of warranty conditions under the policy contract;
- (j) surveying and assessing the loss on behalf of insurer or insured;
- (k) assessing liability under the contract of insurance;
- (l) pointing out discrepancy, if any, in the policy wordings;
- (m) satisfying queries of the insured/insurer and of persons connected thereto in respect of the claim/loss;
- (n) recommending applicability of depreciation, percentage and quantum of depreciation;
- (o) giving reasons for repudiation of claim, in case the claim is not covered by policy terms and conditions;
- (p) taking expert opinion, wherever required;
- (q) commenting on salvage and its disposal wherever necessary.

(2) A surveyor or loss assessor whether appointed by insurer or insured, shall submit his report to the insurer as expeditiously as possible, but not later than 30 days of his appointment, with a copy of the report to the insured giving his comments on the insured's consent or otherwise on the assessment of loss. Where, in special circumstances of the case, either due to its special and complicated nature, the surveyor shall under intimation to the insured, seek an extension, in any case not exceeding six months from the insurer for submission of his report.

(3) In cases where the Survey report is pending due to non completion of documents, the surveyor may issue the final survey report independently based on the available documents on record, giving minimum three reminders in writing to the insured.

(4) If an insurer, on the receipt of a survey report, finds that it is incomplete in any respect, he shall require the surveyor under intimation to the insured, to furnish an additional report on such incomplete issues. Such a request may be made by the insurer within 15 days of the receipt of the original survey report.

Provided that the facility of calling for an additional report by the insurer shall not be resorted to more than once in the case of a claim.

(5) The surveyor on receipt of this communication shall furnish an additional report within three weeks of the date of receipt

of communication from the insurer.

Chapter V

Categorisation of Surveyors

14.

(1)

A Surveyor and Loss Assessor shall be categorized on the basis of level of membership allotted by the Institute. The three levels of membership in the Institute viz Licentiate, Associate and Fellow, shall be as defined in these Regulations.

(2)

Every Surveyor and Loss Assessor, whether a company or firm or an individual, shall be eligible to carry on the work as a surveyor and loss assessor, as per the level of membership allotted by the Institute and specified in the license.

15.

Functions of the Institute.

(1)

The Institute shall grant appropriate membership to the person eligible, within 15 days from the date of receipt of application for membership. The license issued by the Authority to act as a Surveyor and Loss Assessor shall be based on the following criteria, including any other criteria as may be specified:

(a)

Membership

(i)

Licentiate Member: Any person holding a valid license issued by the Authority to act as Surveyor and Loss Assessor, and fulfils other criteria set out in Regulation 15 (1) (b).

(ii)

Associate member: Any Licentiate Member and holding valid license continuously for a period not less than 8 years and fulfils other criteria set out in Regulation 15 (1) (b).

(iii)

Fellow Member: Any Associate Member and holding valid license continuously for a period not less than 16 years and fulfils other criteria set out in Regulation 15 (1) (b).

Provided that any person holding a valid license issued by the Authority as on date of notification of these Regulations may be issued appropriate level of membership by the Institute taking into account his/her number of years of continuous previous service as Surveyor and Loss Assessor.

(b)

Training, examination, seminars and workshops:

(i)

The Institute shall conduct training, examination, seminars and workshops in India for all the Members and every Member, in order to upgrade his/her level of Membership, shall undergo such training, examinations, seminars and workshops as specified below:

(ii)

In addition to the period of practical training that an applicant seeking a license to act as a Surveyor and Loss Assessor is required to undergo, he/ she shall undergo training conducted by the Institute commensurate to their level of membership, for the minimum period as specified below:

Licentiate

-

100 hrs

Associate

-

50 hrs

Fellow

-

25 hrs

(iii)

The Institute or any other institution authorized by the Authority, shall conduct seminars and workshops and every

Member shall attend a minimum number of such seminars and workshops as specified below:

Licentiate - 5

Associate - 8

Fellow - 10

Provided that such training, examination, seminars and workshops of the Institute shall have prior approval of the Authority

Provided that all existing licensed Surveyors and Loss Assessors shall become the Members of the Institute and shall apply to the Authority for grant of modified license indicating the level of Membership allotted by the Institute in accordance with these Regulations.

Provided further that notwithstanding grant of particular level of membership, the total number of continuous years will be reckoned from the time of grant of first license as Surveyor and Loss Assessor.

Provided further that such members shall be required to comply with the requirements on training, evaluation, seminars and workshops for upgrading the existing levels of membership within the time limit as may be prescribed by the Authority from time to time.

(2)

In case the Institute declines any level of membership to the Surveyor and Loss Assessor including student membership, the person can appeal to the Authority.

(3)

The Authority shall consider such an application and communicate its decision thereon to the person and Institute in writing within six weeks of the receipt thereof which shall be binding on both.

(4)

In case the Institute does not comply with the decision of the Authority, the Authority may then issue the license to the applicant on merits of the case without the accompanying membership of the Institute, and such decision would be binding on the Institute.

(5)

The Authority may from time to time issue such guidelines, directions or such other communication for the efficient conduct of the affairs of the Institute.

Chapter VI

Code of Conduct

16.

Every Surveyor and Loss Assessor shall -

(1)

behave ethically and with integrity in the professional pursuits. Integrity implies not merely honesty but fair dealings and truthfulness;

(2)

strive for objectivity in professional and business judgment;

(3)

act impartially, when acting on instructions from an insurer in relation to a policy holder's claim under a policy issued by that insurer;

(4)

conduct himself with courtesy and consideration to all people with whom he comes into contact during the course of his work;

(5)

not accept or perform survey works in areas for which he does not hold a license;

(6)

not accept or perform work which he is not competent to undertake, unless he obtains some advice and assistance, as will enable him to carry out the work competently;

(7)

carry out his professional work with due diligence, care skill and with proper regard to technical and professional standards expected of him;

(8)

keep himself updated with all developments relevant to his professional practice;

(9)

at all times maintain proper record for the work done by him and comply with all relevant laws;

(10)

assist and encourage his colleagues to obtain professional qualifications, and, in this behalf, provide free article ship and/or practical training for a period of twelve months;

(11)

work only as Surveyor and Loss Assessor in insurance business and not undertake any business advisory or consultancy service or work which could give rise to conflict of interest;

(12)

not perform any outsourced activity other than those permitted by the Authority's Outsourcing Guidelines.

(13)

maintain a register of survey work as specified in FORM-IRDAI-11, containing the relevant information, such as, details of insured, insurer, policy number, date of allocation of survey work, date of submission of survey report, amount of claims assessed, such fee details and shall keep important records of the survey reports, photographs and other important documents for a period of three years and furnish the same and such other specified returns, as and when called for by the Authority or by any investigating authority or the insurer. However, in case of litigation involving above information/ records/ documents/ photographs etc, the same shall be maintained till the conclusion of the litigation.

(14)

acknowledge receipt of all monies received in connection with fee or remuneration received for carrying out survey work.

(15)

disclose to all parties concerned his appointment, where the acceptance or continuance of such an engagement may materially prejudice, or could be seen to materially affect the interests of any interested party. As soon as a conflict of interest is foreseen, every Surveyor and Loss Assessor shall notify all interested parties immediately and seek instructions for his continuance;

(16)

not disclose any information, pertaining to a client or employer or policy holder acquired in the course of his professional work, to any third party, except, where consent has been obtained from the interested party, or where there is a legal right or duty enjoined upon him to disclose;

(17)

neither use nor appear to use, any confidential information acquired or received by him in the course of his professional work, to his personal advantage or for the advantage of a third party.

(18)

shall undertake survey jobs in a company /firm only as an employee/ director/ partner.

(19)

Every Surveyor and Loss Assessor who is an employee of an insurer shall only survey and assess the loss and not involve himself/ herself in settlement of claim.

(20)

Comply with the provisions of AOA, regulations, and Code of Ethics framed by the Institute from time to time.

(21)

Comply with all the provisions of the Act, the IRDA Act, the Rules and Regulations made there under and other orders, directions and guidelines issued by the Authority from time to time.

Chapter VII

Trainee Applicants

17.

(1)

A Student Member seeking a license to act as a Surveyor and Loss Assessor shall apply and enrol with Authority as Trainee in FORM-IRDAI-13 as given in the Schedule II to these Regulations, after having obtained the willingness to impart training from his trainer in FORM-IRDAI-14 as given in the Schedule II to these Regulations, and shall undergo practical training for a period of not less than twelve months with a licensed Surveyor and Loss Assessor as specified below:

(2)

During the period of training, every applicant who is a Student Member of the Institute and enrolled as trainee shall comply with the code of conduct and code of ethics prescribed by the Institute and duly approved by the Authority and shall include the following:

(a)

Behave ethically and with integrity. Integrity implies not merely honesty but fair dealings and truthfulness.

(b)

Not accept/perform/undertake any survey works and not issue any survey report without holding a valid license issued by the Authority to act as Surveyor and Loss Assessor

(c)

Maintain at all times, proper record of training details duly certified by the trainer surveyor,

(d)

Disclose all information relating to any proceedings initiated or investigation pending or carried out/against him/her or by any agency and details of the outcome thereof"

(e)

File within 15 days, any change in information already submitted to the Authority

(f)

Any other instructions specified by the Authority/Institute from time to time.

(3)

The surveyor under whom a trainee will be trained shall be an Associate or Fellow member of the Institute.

(4)

The trainee shall maintain a quarterly record of training received in FORM-IRDAI-15 during the period and shall get it certified by the Surveyor and Loss Assessor under whom he has been trained and the certificate in FORM-IRDAI-16 shall be attached to the application for seeking grant of a license under Regulation 3;

(5)

The license to be granted to an applicant to act as a Surveyor and Loss Assessor shall be in that particular area for which he has been trained;

(6)

If a Surveyor and Loss Assessor already licensed by the Authority seeks to obtain a similar license for acting as a surveyor in a department of general insurance business other than for which he has been licensed, he shall undergo a period of training of not less than six months under a licensed Surveyor and Loss Assessor holding either a Fellow or Associate Membership to act in that particular area.

(7)

Those who have enrolled as trainees with the Authority as on the date of notification of these Regulations shall become Student Members of the Institute and shall comply with the criteria set out in Regulation 3 for grant of license to act as Surveyor and Loss Assessor.

18.

The Authority may also prescribe the passing by an applicant of an examination on the successful completion of the training prescribed above for the grant of a license under Regulation 3. The examination may be conducted either by the Insurance Institute of India or by an institution authorized by the Authority.

Chapter VIII

Miscellaneous

19.

Register of Licensed Insurance Surveyors and Loss Assessors.

(1)

The Institute shall maintain a Register of all licensed Insurance Surveyors and Loss Assessors containing the following particulars:-

(a)

full name, date of birth, domicile, residential and professional address;

(b)

the date on which name is entered in the Register;

(c)

license number and period of validity;

(d)

professional and other qualifications;

(e)

areas of survey work licensed to be undertaken;

(f)

level of membership in the Indian Institute of Insurance Surveyors and Loss Assessors;

(g)

any other particulars as may be prescribed by the Authority from time to time.

Provided that in the case of Corporate Surveyors, the particulars to be entered in the register, shall be with reference to every director or partner, as the case may be.

(2)

The Institute shall periodically, delete the particulars of Surveyors and Loss Assessors, who are no longer alive, or whose license has been cancelled from the Register.

(3)

The Authority may cause the publication of the relevant particulars entered in the register, as may be considered appropriate by it, at such intervals and in such manner, as may be deemed fit.

20.

Submission of returns by Surveyor and Loss Assessor.

- Every licensed Surveyor and Loss Assessor shall:-

(1)

furnish such document, statement, account, return or report, as and when required by the Authority, and comply with such directions, as may be issued by the Authority in this behalf, from time to time; and

(2)

submit an annual statement in FORM-IRDAI-12 given in the Schedule-II to these Regulations.

(3)

Every corporate Surveyor and Loss Assessor shall submit a copy of Audit Report and Annual Statement of Accounts by 30th September every year.

21.

Submission of reports by insurers.

- Every insurer shall submit to the Authority the following:

(1)

File with the Authority, annually, a copy of the policy formulated by the company, on the methodology followed for appointment of surveyors, utilization of surveyors and allotment of survey jobs to licensed surveyors.

(2)

File with Authority, changes if any made in the policy submitted as stated at sub-regulation (1) above, within 15 days of such change with reasons thereof.

(3)

Quarterly report on misconduct of licensed surveyors, including, action, if any taken, on the employee surveyors under the employment rules.

(4)

Half-yearly report giving the number of claims reported, number of claims surveyed by in-house/ individual/ corporate surveyors, number of claims settled, amounts paid, number of claims outstanding, amounts involved, reasons for claims outstanding, time taken for claim settlement, claims settlement ratio. The report may be prepared State-wise, Surveyor wise, Amount-wise or on any other parameter considered appropriate and furnished to the Authority.

22.

Inspection.

(1)

The Authority, may appoint one or more persons as inspecting authority to undertake inspection of survey work, books, records and documents, or to investigate any bonafide complaint received against a Surveyor and Loss Assessor.

(2)
The inspecting authority shall, as soon as possible, submit an inspection report to the Authority.

(3)
A Surveyor and Loss Assessor shall provide the information sought by the inspecting authority for the purpose of carrying out inspection/investigation and extend all possible co-operation to facilitate the conduct of its work.

(4)
The Authority shall, after consideration of the inspection report, communicate the findings of the inspecting authority to the Surveyor and Loss Assessor, and shall take appropriate action after giving the Surveyor and Loss Assessor a reasonable opportunity of being heard.

23.
Suspension of license.

(1)
The Authority may suspend a license already granted, to a Surveyor and Loss Assessor (individual/ corporate), if he/it:

(a)
Fails to discharge the duties and responsibilities in a satisfactory and professional manner; or

(b)
Violates the code of conduct specified in these Regulations or

(c)
Makes a statement which is false in material particulars with regard to eligibility for obtaining license or renewal thereof or in any of the activities transacted by him or them or the matters connected therewith as a Surveyor and Loss Assessor or has after the issue or renewal of such license, acquired any of the disqualifications provided under section 42D of the Act; or

(d)
Has contravened any of the provisions of the Act, or the IRDA Act, or any rules or regulations made under those Acts, or any order or direction issued by the Authority; or

(e)
Has been negligent in discharge of his obligations; or

(f)
Has been sentenced to a term of imprisonment by any court of law

Provided that the Authority shall give a reasonable opportunity to the person concerned, of being heard before such suspension.

(2)
The Authority may also suspend the license if it is of the opinion based on material information that the continuation of such license would be prejudicial to the interest of the policy holders, in which case the opportunity of personal hearing may not be provided.

(3)
The Authority may in addition to the suspension of the individual license of director/ partner of a corporate surveyor may also suspend the license of the corporate surveyor and loss assessor for any act committed as stated at sub-regulation 1 and 2 above.

(4)
The suspension of license shall be for such period as may be indicated in the order and shall take effect from the date of the order of suspension until revoked.

(5)
During the period of suspension, the holder of such a suspended license shall not carry out any survey and loss assessment work including the survey jobs on hand and shall return all such pending jobs to the insurer or the insured, as the case may be.

24.
Cancellation of license.

(1)
Where it is found that a Surveyor and Loss Assessor suffers from any of the disqualifications mentioned in section 42D of the Act or has knowingly contravened any provisions of the Act or the IRDA Act, or the Rules or Regulations made

under those Acts or any order or directions or instructions issued by the Authority, the Authority may, cancel his license, with effect from such date as may be specified by it.

Provided that the Authority shall give a reasonable opportunity to the person concerned, of being heard, before cancellation

Provided further that the powers conferred on the Authority in this Sub-Regulation are without prejudice to the powers conferred on it by Section 64UM of the Act.

(2)

The Authority may also cancel the license if it is of the opinion that the continuation of such license would be prejudicial to the interests of policyholders.

(3)

A surveyor whose license has been cancelled for any reason, may submit an application for issuance of license, after the expiry of one year from the date of such cancellation, and, such an application shall be treated as an application for grant of fresh license, and accordingly the applicant shall satisfy all the requirements stated under Regulation 3 or Regulation 4, as the case may be.

25.

Procedure for suspension and cancellation of license.

(1)

Subject to Regulation 24(1), a licensed Surveyor and Loss Assessor whose license is proposed to be suspended or cancelled by the Authority may be granted an opportunity of hearing before suspending or cancelling the license.

(2)

Upon receipt of the order of suspension, the suspended Surveyor and Loss Assessor may file a representation before the Authority for revocation of suspension. The Authority may designate an officer who, upon considering the representation, shall pass such an order or orders as he/she deems fit which shall be communicated to the suspended Surveyor and Loss Assessor.

(3)

If, on the basis of the order of the designated person, the Authority revokes the order of suspension and restores the license of the Surveyor and Loss Assessor, it shall indicate the date from which such restoration will take effect.

(4)

The license granted by the Authority may be cancelled by the Authority where the suspended Surveyor and Loss Assessor does not represent within a period of 45 days from the date of order of suspension.

(5)

Any decision of suspension, cancellation or revocation of license shall be intimated to the concerned surveyor and loss assessor.

26.

Power to clarify.

- In case of any doubt or ambiguity with regard to any of these Regulations, the same shall be clarified by Chairperson of the Authority.

27.

Transitory Provisions.

- A license issued before the commencement of these Regulations, by the Authority shall be deemed to have been issued in accordance with these Regulations.

Provided that all those Surveyors and Loss Assessors who are not compliant with the requirements stipulated in clause (a) and (b) of sub-section 1 of Section 64UM of the Act shall become compliant within a period of three years from the date of notification of these Regulations failing which their license shall cease to be valid automatically.

I

Annexure-1

IRDAI (Insurance Surveyors and Loss Assessors) Regulations, 2015

Qualification Criteria for Enrolment and Licensing of Surveyors and Loss Assessors (Regulation 3)

S.No.

Department

Academic/technical/Professional/Insurance

Qualifications

1.

Fire

B.E./ B. Tech./ B.Sc. (Engg.)/ A.I.M.I.E. or its equivalent, C.A./ I.C.W.A., A.I.I.I./ F.I.I.I./Post Graduate Diploma in Insurance from IIRM

2.

Marine Cargo

B.E./ B.Tech./ B.Sc. (Engg.)/ A.I.M.I.E. or its equivalent thereof (Marine Engineering/ Naval Architecture),/ certificate of competency as Master of Ship or as First Class Marine Engineer issued by a recognized authority, Degree or diploma in Naval Architecture of a recognized University or Institute./ A.I.I.I./ F.I.I.I./ Post Graduate Diploma in Insurance from IIRM

3.

Marine Hull

B.E./ B.Tech./ B.Sc. (Engg.)/ A.I.M.I.E. or its equivalent thereof (Marine Engineering/ Naval Architecture)/ certificate of competency as Master of Ship or as First Class Marine Engineer issued by a recognized authority,

4.

Engg.

B.E./ B.Tech./ B.Sc. (Engg.)/ A.I.M.I.E. or its equivalent , Diploma of 3 years duration from a recognised institution or its equivalent thereof

5.

Motor

B.E./ B.Tech./ B.Sc. (Engg.)/ A.I.M.I.E. or its equivalent thereof (Mechanical/ Automobile); Diploma in Mechanical Engineering/ Automobile Engineering of 3 years duration from a recognised institution or its equivalent thereof

;

6.

Miscellaneous

B.E./ B.Tech./ B.Sc. (Engg.)/ A.I.M.I.E. or its equivalent; Diploma of 3 years duration from a recognised institution or its equivalent; C.A./ I.C.W.A.; A.I.I.I./ F.I.I.I./ Post Graduate Diploma in Insurance from IIRM;

7.

LOP

C.A./ I.C.W.A; A.I.I.I./ F.I.I.I

8.

Crop Insurance*

B. Sc. in Agricultural Science from a recognised University.

* The details of the training and examination for Crop Insurance shall be notified separately.

Note. - 1. In order to qualify for enrolment and licensing, an applicant should have secured a degree or diploma of a recognized Institute after attending full time course and passing the examination as a regular student.

2. All technical Degree/Diploma stated above shall be obtained from AICTE approved Institutions.

I

Annexure-2

IRDAI (Insurance Surveyors and Loss Assessors) Regulations, 2015

Fit and Proper Criteria (Regulation 4)

1. The applicant should satisfy the Authority that: -

(1)

He is a fit and proper person to be licensed as Surveyor and Loss Assessor

(2)

The directors/partners of corporate surveyor are fit and proper to hold their offices

(3)

All of its substantial shareholders/promoters/partners are fit and proper persons;

2. Declaration and Undertaking for directors/ partners/ promoters of corporate surveyors. - (1) 'Declaration and Undertaking' prescribed for the purpose of conducting due diligence to determine the 'fit and proper' status of surveyors and loss assessors and directors/ partners/ promoters of corporate surveyors is given below. Henceforth, surveyors and loss assessors shall use the below format for submitting declaration and undertaking for the purpose of grant of license and/or renewal thereof.

(2)

A separate form needs to be submitted by each individual applicant:

Name of the Surveyor (Corporate Surveyors)

I.

Personal Details

a.

Full Name

b.

Position in Surveyor entity

c.

Date of Birth

d.

Educational Qualifications

e.

Relevant Background and Experience

f.

Permanent Address

g.

Present Address

h.

E-mail address/ telephone numbers

i.

PAN under the Income Tax Act Name and address of
Income Tax Circle

j.

Address Proof

k.

Relevant knowledge and experience in Insurance

l.

Any other information relevant to position

II.

Relevant FIT &

Proper Criteria

If answer is YES to any of the questions;
please give full details.

a.

Have you ever registered or obtained license from any of the regulatory authorities under any law such as SEBI, RBI, IRDAI, PFRDA etc.

b.

Have you carried on business under any name other than the name stated in this Application

c.

Have you ever been refused or restricted by any regulatory authority to carry on any business, trade or profession for which a specific license registration or other authorization is required by law

d.

Have you been ever censured or disciplined or suspended or refused permission or license or registration by any regulatory authority to carry on any business activity

e.

Have you been subject to any investigations or disciplinary proceeding or have been issued warning or reprimand by any regulatory authority

f.

Have you been convicted of any offence or subject to any pending proceedings under any law

g.

Have you been banned from entry at any profession / occupation at any time.

h.

Details of prosecution, if any, pending or commenced or resulting in conviction in the past for violation of economic laws and regulations

i.

Details of criminal prosecution, if any, pending or commenced or resulting in conviction in the past against you

j.

Do you attract any of the disqualifications envisaged under Section 164 of the Companies' Act 2013?

k.

Have you been subject to any investigation at the instance of Government department or agency?

l.

Have you at any time been found guilty of violation of rules / regulations / legislative requirements by customs / excise / income tax / foreign exchange / other revenue authorities, if so give particulars

m.

Have you at any time come to the adverse notice of a regulator such as SEBI, IRDAI, DCA.

(Though it shall not be necessary for a candidate to mention in the column about orders and findings made by regulators which have been later on reversed / set aside in toto , it would be necessary to make a mention of the same, in

case the reversal / setting aside is on technical reasons like limitation or lack of jurisdiction, etc, and not on merit. If the order of the regulator is temporarily stayed and the appellate / court proceedings are pending, the same also should be mentioned).

n.

Has any of your group company/associate company/related party been carrying any license issued by the IRDAI

o.

Any other explanation / information in regard to items I and II and other information considered relevant for judging fit and proper

III.

Undertaking

I confirm that the above information is, to the best of my knowledge and belief, true and complete. I undertake to keep the Authority fully informed, as soon as possible, of all events, which take place subsequent to issuance of my license to act as Surveyor and Loss Assessor, which are relevant to the information provided above.

{|

Place

Signature

| -

| {|

| -

| Date

| Name

|}

|}

II

Application Forms and Licensing formats

Form - IRDAI - 1 - AF

[See Regulation 3(1)]

Application for a License to Act as Surveyor and Loss Assessor (Individual)

Application for Fresh License is accepted online only on www.irdabap.org.in

Applicant is required to enrol online for training and qualify professional exams before applying for fresh license. For enrolment go to www.irdabap.org.in

Checklist

Please ensure the following:

(1)

To enclose a copy of the Student Membership Certificate issued by the IIISLA (mandatory) "details are available on www.iiisla.co.in"

(2)

To make online payment of fees (as mentioned in the Regulations) through "NET BANKING /DEMAND DRAFT/ NEFT/ RTGS" during application submission.

(3)

To attach scanned copy of Degree/ Diploma attested by Notary/ Magistrate.

(4)

To attach scanned copy of affidavit duly Notarized against S. No. 2 of the application form.

(5)

To enclose attested and scanned documents in response to Q. No.'s 4, 8, 9, 10 & 11. The answers to which are a must.

(6)

To attach a recent scanned copy of passport size photograph along with the application form.

(7)

Send physical copies of application, uploaded documents and self addressed envelope of 4.5"X10" with Rs.40 postage stamp to IRDAI. These are mandatory for grant of license.

(8)

To attach Fit and Proper statement as mentioned in Regulation 3 in prescribed format.

Notes. - Read with Regulation 3

(1)

The attention of the applicant is drawn to Section 102(a) of the Insurance Act 1938, which provides that "if any person, who is required under this Act, or rules or regulations made there under to furnish any document, statement, account, return or report to the Authority, fails to furnish the same, he shall be liable to a penalty of one lakh rupees for each day during which such failure continues or one crore rupees, whichever is less".

(2)

An individual can apply for only one license, which will entitle him to act as a Surveyor and Loss Assessor for any insurer.

(3)

Any correction or alteration made in answer to the questions in the application should be initialled by the applicant.

(4)

An applicant must be at least 18 (eighteen) years of age on the date of submission of the application. In the case of any applicant declaring his age as 18 years, the exact date of birth should be stated against item no 6 of the application. If required the applicant shall furnish proof of age.

(5)

A notification will be sent to the applicant on successful submission of the application form.

(6)

Any change in the information submitted to the authority must be informed to the authority within 15 days from date of the change.

(7)

As the license is issued bilingual viz. Hindi and English, the applicant may like to indicate how he spells his name in Hindi. It is, therefore, advised that the name and address may be written in bilingual form.

Form - IRDAI - 1 - AF

1. I, student member of the Institute, request that a license to act as a Surveyor and Loss Assessor may be granted to me for the following department

Dept

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

Please tick

Student Membership Details..... (to upload soft copy of the Membership Certificate and ID card issued by the Institute)

2. I hereby declare that

(1)

I have not been found to be of unsound mind by a Court of competent jurisdiction.

(2)

I have not been found guilty of criminal misappropriation or criminal breach of trust or cheating or forgery or of abetment

or attempt to commit any such offence by a Court of Competent Jurisdiction.

(3)

I have not been found guilty of or to have knowingly participated in or connived at any fraud/dishonesty or misrepresentation against an insurer or an insured in the course of any judicial proceeding relating to any policy of insurance or the winding up of an insurer.

(4)

I shall not violate the code of conduct specified by the Regulations made by the Authority.

(5)

I possess the requisite qualifications and practical training as specified by the Regulations made by the Authority.

(6)

I have passed such examination as specified by the Regulations made by the Authority.

3. I also declare that the particulars given below are true:

(1)

Full Name (Shri/Smt/Kum)[in English & Hindi)

?.....

(2)

Father/Husband's Name

?.....

(3)

Present address [in English & Hindi]

Address1

?.....

Address2

?.....

Address3

?.....

City/Town/Village

?.....

District

?.....

State

?.....

Country

?.....

Pin code

?.....

(4)

Permanent address

Address1

?.....

Address2

?.....

Address3

?.....

City/Town/Village

?.....

District

?.....

State

?.....

Country

?.....

Pin code

?.....

4. Qualification

(1)

Academic / Professional

.....

(2)

Insurance

.....

(3)

Training Attended

.....

(Nature - Duration for all of the above)

5. Communication

Phone Office

Phone Res.

Fax

Mobile

Email ID

Alternate Email ID

6. Date of Birth

7. Sole Proprietor (Name if applicable)

8. Practical Training Details (Please enclose the Training Completion Certificate obtained from the surveyor/ corporate surveyor)

Name of the Surveyor/ Corporate surveyor

Departments allocated to surveyors/ Corporate

Surveyor

Level of Membership allotted to the Surveyor/

Corporate surveyor

Period of training undergone (Please mention dates)

Name of person(s) under whom training undertaken

Areas Covered

Result

9. Experience Details:

(1)

Whether the applicant was employed with any insurance company:

(2)

Job Experience in previous employment other than insurance surveyor, if any:

(3)

Details of other business/employment:

10. Occupation status:

Student

Professional

Business

Employee

Service

Housewife

Others ...

11. Employment details:(In chronological order of employment).

(1)

Whether applicant is currently employed? Yes/No

(2)

If yes, provide details below and also attach scanned copy of NOC from employer

Name of Employer

Nature of Organization

Nature of Work

Period of employment

From Date

To Date

(Govt./Semi-govt/ Private Firm, insurance

company, surveyor firm, PSU, others)

(Insurance survey related, Others)

(3)

Details of any other business/profession carried out:

Name of Firm

Designation

Nature of Business

12. Have you ever held a license to act as a Surveyor and Loss Assessor?

If Yes, please provide details:

License No.

.....

Date of Issue

.....

Expiry Date

.....

13. Fee Payment: NET BANKING/DEMAND DRAFT

Fee applicable for Fresh License. - Rs.1000/- plus applicable service tax as prescribed by Central Government from time to time.

14. Declaration:

I solemnly declare and confirm that the particulars given above are true to the best of my knowledge and belief.

Signature of Applicant.....

Form-IRDAI-2-LF

[See Regulation 3(9)]

Not Transferable

Insurance Regulatory and Development Authority of India

License No.

License to Act as a Surveyor and Loss Assessor Under the Insurance Act, 1938

(Individual)

Mr./ Mrs./ Miss.....

Address House No..... Street.....

Town/ District State..... Pin code.....

* working as sole proprietor ofhaving Membership No of the Institute and having paid the specified fee and having made the necessary declaration is hereby authorised under Section 64UM of the Insurance Act, 1938 to act as Surveyor and Loss Assessor for a period of three years from

This License will expire on DD-MM-YYYY

Name is allocated the following departments and Level of Membership:

Dept

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

Level of Membership

Hyderabad, dated the DD-MM-YYYY

Signature of License Holder.....

.....Designated Person

Insurance Regulatory and Development Authority of India

Notes. - 1. If it is desired to renew this license for a further period, the procedure stated in the Regulations shall be followed, and an application for renewal should reach the Authority at least thirty days before the license expires.

2. This license authorizes the license holder to act as a Surveyor and Loss Assessor for any registered insurer and therefore, no identifying mark or note of any description by which the identity of an insurer might be established should be placed on the license.

3. No correction in this license shall be valid unless initialled by the Designated Person of the Authority.

Form - IRDAI- 3 - AF

[See Regulation 4(1)]

Application From A Firm Or Company for a License to Act as a Surveyor and Loss Assessor

Application for fresh Corporate Surveyor license is accepted online only on www.irdabap.org.in

Checklist

Please ensure the following:

1. To enclose a copy of the Membership certificate of directors/partners issued by the IISLA (mandatory) "details are available on www.iisla.co.in".
2. To make online payment of fees (as mentioned in these Regulations) through "Net Banking" during application submission.
3. To attach scanned copies ready of Degree/ Diploma /Technical qualifications attested by Notary/ Magistrate only.
4. To attach scanned copy of affidavit duly Notarized against S. No. 2 of the application form.
5. Attach attested and scanned copies of documents wherever required.
6. Send Self addressed envelope 4.5"X10" with Rs.40 postage stamp to IRDAI.
7. To attach Fit and Proper statement as mentioned in Regulation 3 in prescribed format.

Notes. - Read with Regulation 4

1. The attention of the applicant is drawn to Section 102(a) of the Insurance Act 1938, which provides that if any person, who is required under this Act, or rules or regulations made there under to furnish any document, statement, account, return or report to the Authority, fails to furnish the same, he shall be liable to a penalty of one lakh rupees for each day during which such failure continues or one crore rupees, whichever is less.
2. A firm or company including group companies can apply for only one license which will entitle it to act as a Surveyor and Loss Assessor.
3. Any correction or alteration made in the application should be initialled by the applicant.
4. Name of the company should be suffixed by "Insurance Surveyor and Loss Assessor".
5. A licensed SLA cannot act/function as a Director/Partner of more than one Corporate Surveyor.
6. All directors shall possess license to act as Surveyor and Loss Assessor.
7. The main object of the company/firm shall be to undertake survey, loss assessments and related jobs.
8. Any changes in license details should be duly reported within 15 days to IRDAI for grant of modified license. Affidavit should be provided on behalf of the firm.
9. The fee (as may be specified by Authority from time to time) to be applied depends on the highest level of membership of any of the Director/Partner of the company/Firm.
10. An affidavit of Rs. 10/- duly notarized on non-judicial stamp paper is required to be scanned and attached for renewal of licenses in the form of a declaration as contained against Sl.No.8 of the application form.
11. An email notification will be sent to the applicant on successful submission of the application form.

12. Any change in the information submitted to the authority must be informed to the authority within 15 days from date of the change.

Form - IRDAI- 3 - AF

1. It is requested that a license to act as a Surveyor and Loss Assessor may be granted to our Firm/Company for the following departments and level of membership allotted to our directors/partners under their individual surveyor license:

Dept

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

Name of director/partners, their individual

License-Details & level of Membership

2. It is hereby declared that -

(1)

No director/ partner of our Company/Firm has been found to be of unsound mind by a Court of competent jurisdiction.

(2)

No director/ partner of our Company/Firm has been found guilty of criminal misappropriation or criminal breach of trust, or cheating or forgery, or an abetment of or attempt to commit any such offence by a Court of competent jurisdiction.

(3)

No director/ partner of our Company/Firm has been found guilty of or to have knowingly participated in or connived at any fraud, dishonesty or misrepresentation against an insurer or an insured in the course of any judicial proceedings relating to any policy of insurance or the winding up of an insurer or in the course of an investigation of the affairs of an insurers.

(4)

No director/ partner of our Company/Firm is a minor.

(5)

No director/ partner of our Company/Firm shall violate the code of conduct specified by the regulations made by the Authority.

(6)

All director(s)/ partner(s) of our Company/Firm possess the requisite qualifications and practical training as specified by the regulations made by the Authority.

(7)

All director(s)/ partner(s) persons of our Company/Firm have passed such examination as specified by the regulations made by the Authority.

(The above declaration shall pre-populate in the online licensing process)

3. It is also declared that the particulars given below are true.

(1)

Name of Company/Firm (In English & Hindi)

(2)

Address of Company/Firm (In English & Hindi)

(Registered/Corporate Office)

(3)

Details of Branch Office/s (If any)

(4)

Details of Employees

Licensed surveyors employed in the firm &

Level of membership

Designation

Employment Period

SLA No.

Date of Expiry

From Date

To Date

4. It is also declared that the name of all the director/s & partner(s) with their addresses and their date of birth submitted:

(1)

have been in practice as a surveyor/ loss assessor on the 31st May,1970 or;

(2)

hold a degree of a recognized university in any branch of engineering, or

(3)

be a fellow or associate member of the Institute of Chartered Accountants of India or Institute of Cost and Works Accountants of India or

(4)

possess actuarial qualifications or hold a degree or diploma of any Indian University or Institute in relation to insurance, or

(5)

hold a diploma in insurance granted or recognized by the Government, or

(6)

possess any of the technical qualifications mentioned in Rule 56A

(N.B. 1. - In the case of each of the partners/directors claiming to come under item (a) above and not being eligible to come under any of the items (b) to (f) above, a Certificate sworn before a Magistrate or a Notary Public should be forwarded and in the case of each of the partners/Directors claiming to come under any one of the items (b) to (f) above, either the original diplomas/ certificates with one attested copy each, or copies of the diplomas/ certificates duly attested by a Magistrate or Notary Public should be enclosed. Where original diplomas/ certificates are sent, they will be returned after perusal, but no responsibility can be accepted for loss or damage of such originals

5. Details of Directors (details of multiple directors is captured)

(1)

SLA No.

?.....

(2)

Membership details of Institute:

(a) Membership/ ID card No

?.....

(b) Date of Issue of ID card

?.....

(c) Level of membership allotted

?.....

(d) Date of Expiry

?.....

(3)

Name

?.....

(4)

Address

?.....

(5)

Departments allocated

?.....

Dept

Fire
Marine cargo
Marine Hull
Engg
Motor
Misc
Crop Insurance
LOP
Level of Membership
(6)
Last Employment details
Name of Employer
Nature of Organization
Nature of Work
Period of employment
From Date
To Date

(Govt./Semigovt/ Private Firm, insurance company,
corporate surveyor, PSU, others)
(Insurance survey related, Others)

N.B. - Where a director/ partner does not already hold an individual license then an application (in FORM-IRDAI-1-AF.-
Application for New License) from such a person should also be submitted.

6. Did the Firm/Company ever hold a license? If Yes, provide details below and upload copy of old license

(1)
SLA No.
.....

(2)
Date of Issue
.....

(3)
Date of expiry
.....

(4)
Reason for Non renewal
.....

7. Fee Payment. - Net Banking /Demand Draft/NEFT/RTGS

Fee applicable for Fresh License. - Rs.1000/- plus applicable service tax as prescribed by Central Government from
time to time.

8. Declaration:

I solemnly declare and confirm that the particulars given above are true to the best of my knowledge and belief.

Signature of Applicant.....

(duly authorized by the Company/Firm)

Form - IRDAI - 4 LF

[See Regulation 4(13)]

Not Transferable

Insurance Regulatory and Development Authority of India

License No.

License to Act as a Surveyor and Loss Assessor Under the Insurance Act, 1938

(Corporate)

Name of the Company/Firm:

Registered Address:

Having paid the specified fee and having made the necessary declaration is hereby authorized under Section 64UM of the Insurance Act, 1938 to act as a Surveyor and Loss Assessor for three years from DD-MM-YYYY.

This License will expire on DD-MM-YYYY.

The following are the details of Directors / Partners along with individual license no., departments and level of Membership allotted:-

Name of Director/ Partner

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

License and Membership details of
directors/partners

Hyderabad, dated the DD-MM-YYYY

Name of the directors/Partners

Photo Director 1

Photo Director 2

Photo Director 3

Name.....

Name.....

Name.....

Signature

.....

Seal of the Company/Firm

.....

Designated Person

Insurance Regulatory and Development Authority of India

Notes. - 1. If it is desired to renew this license for a further period, the procedure stated in the Regulations shall be followed, and an application for renewal should reach the Authority at least thirty days before the license expires.

2. This license authorizes the license holder to act as a Surveyor and Loss Assessor for any registered insurer and therefore, no identifying mark or note of any description by which the identity of an insurer might be established should be placed on the license.

3. No correction in this license shall be valid unless initialled by the Designated Person of the Authority.

Form - IRDAI - 5 AF

[See Regulation 6(1)]

Application for Renewal of a License to act as Surveyor and Loss Assessor

(Individual)

Renewal Application is accepted online only on www.irdabap.org.in

Checklist

Please ensure the following:

1. To enclose a copy of the membership certificate issued by the IISLA (mandatory) "details are available on www.iisla.co.in"
2. To submit FORM-IRDAI-12 (annually) online before applying for Renewal and to make online payment of fees (as mentioned in these Regulations) through "Net Banking/ NEFT/ RTGS" or through a Demand Draft to be submitted along with application Form..
3. To attach scanned copy of previous license.
4. To attach scanned copies of qualifications duly attested by notary.
5. to attach scanned copy of affidavit duly notarised against S. No. 2 of the application form.

6. To send Self addressed envelope 4.5" X 10" with Rs.40 postage stamp to IRDAI to send hard copy of the renewed license

7. To attach a recent scanned copy of passport size photograph along with the application form.

Notes. - Read with Regulation 6

1. All licensed surveyors shall apply online 30 days before the expiry of the license.

2. Any correction or alteration made in answer to the questions in the application should be initialled by the applicant.

3. An affidavit of Rs. 10/- duly notarized on non-judicial stamp paper is required to be scanned and attached for renewal of license in the form of a declaration as contained against S. No. 2 of the application form.

4. An email notification will be sent to the applicant on successful submission of the application form.

5. Any change in the information submitted to the authority must be informed to the authority within 15 days from date of the change for grant of modified license by the authority.

Form - IRDAI - 5 AF

1. I request that the below license may be renewed for a further period of three years.

(1)

Current License Details

(a) SLA No.

(mandatory)

.....

(b) License Effective Date

.....

(c) Date of Expiry

.....

(2)

Membership details of Institute:

(a)

Membership/ID card No

.....

(b)

Date of Issue of ID card

.....

(c)

Level of membership allotted

.....

(3)

Name of Surveyor and Loss Assessor

.....

(4)

Permanent Address

.....

(5)

Present Address

.....

(If change in present address, please upload proof of address)

(6)

Departments allocated

Dept

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

Level of Membership

2. I declare that since the date of my last application for license:

(1)

I have not been found to be unsound mind by a Court of competent jurisdiction.

(2)

I have not been found guilty of criminal misappropriation or criminal breach of trust or cheating or forgery of an abetment of or attempt to commit any such Offence by a Court of Competent jurisdiction, and

(3)

I have not been found guilty of or to have knowingly participated in or connived at any fraud/dishonesty or made any misrepresentation against an insurer or an insured in the course of any judicial proceeding relating to a policy of insurance or the winding up of any investigation of the affairs of an insurer, and

(4)

My license has not been cancelled at any time by the Controller of Insurance/ Insurance Regulatory and Development Authority of India.

(5)

I declare that I continue to hold the qualification on the basis of which my license mentioned above was issued.

(6)

An undertaking on performance report showing survey work done by me during the last 3 years of the validity period indicating total number of survey work, and amount involved in each category of cases, year-wise and company-wise is attached.

(7)

In addition to surveyor's work, I am also engaged on other occupations, the details of which are given below: Or I am not engaged in any other occupation.

(8)

I have not been disqualified for any of the provisions of IRDAI (Insurance Surveyors and Loss Assessors) Regulations 2015 neither attracted the disqualification stated in section 42D of the Insurance Act, 1938.

3. Occupation status:

Student

Professional

Business

Employee

Service

Housewife

Others ...

4. Employment details:

(1)

Whether applicant is currently employed? Yes/No

(2)

If yes, provide details below and also attach scanned copy of NOC from employer

Name of Employer

Nature of Organization

Nature of Work

Period of employment

From Date

To Date

(Govt./Semigovt/ Private Firm, insurance company, surveyor firm, PSU, others)

(Insurance survey related, Others)

(3)

Details of any other business/profession carried out:

Name of Firm

Designation

Nature of Business

5. Whether the applicant has been in practice as a Surveyor and Loss Assessor on the 31st May, 1970? If answer is in YES and the applicant does not possess any of the qualifications stated in Insurance Act, 1938 and rules and regulations made there under the applicant must make a declaration and duly sworn before a Magistrate or a Notary Public.

6. Fee Payment; NET BANKING/ DEMAND DRAFT/ NEFT/ RTGS

A fee of Rs. 100/- plus applicable service tax as prescribed by Central Government from time to time.

7. In case license is submitted after expiry upto a maximum period of six months, the license fee will be Rs. 100/- + penalty of Rs. 750/- plus applicable service tax as prescribed by Central Government from time to time (also attach notarized copy of qualification).

8. Declaration

I solemnly declare and confirm that the particulars given above are true to the best of my knowledge and belief.

Signature of Applicant.....

Date:

Place:

Form - IRDAI - 6 - AF

[See Regulation 6(1)]

Application From A Firm Or Company for Renewal of a License to act as a Surveyor and Loss Assessor

Corporate Surveyor Renewal Application is accepted online only on www.irdabap.org.in

Checklist

Please ensure the following:

1. To enclose a copy of the membership certificate of partners/directors issued by the IIISLA (mandatory) "details are available on www.iiisla.co.in"
2. To submit FORM-IRDAI-12 (annually) online before applying for Renewal and to make online payment of fees (as mentioned in these Regulations) through Net Banking NEFT/ RTGS" or through a Demand Draft to be submitted along with application Form.
3. To attach scanned copies ready of Degree/ Diploma/Technical qualification attested by Notary/ Magistrate.
4. To attach scanned copy of affidavit duly notarized against S.No.4 of the application form.
5. To send Self addressed envelope of 4.5" X10" with Rs.40. postage stamp to IRDAI to send a hard copy of the License Certificate.

Notes. - 1. The application should be submitted online at least 30 days before the expiry of the license with a renewal fee of Rs.100 + applicable service tax as per approval of GOI may be paid online through Net Banking/Demand Draft/NEFT/RTGS.

2. In case application is not submitted in accordance with 1 above or if the application is submitted within six months after expiry of license period, the license fee will be Rs.100/- + penalty of Rs.750/- + service tax as applicable through Net Banking/Demand Draft/NEFT/RTGS.

3. The attention of the applicant is drawn to Section 102(a) of the Insurance Act 1938, which provides that if any person, who is required under this Act, or rules or regulations made there under to furnish any document, statement, account, return or report to the Authority, fails to furnish the same, he shall be liable to a penalty of one lakh rupees for each day during which such failure continues or one crore rupees, whichever is less.

4. A firm or company including group companies can apply for only one license which will entitle it to act as a Surveyor and Loss Assessor.

5. Any correction or alteration made in the application should be initialed by the applicant.

6. Name of the company/firm should be suffixed by "Insurance Surveyor and Loss Assessor".

7. A licensed SLA cannot act/function as a Director/Partner of more than one company/firm.

8. All directors shall possess surveyor license which shall be duly licensed and categorized.

9. The main object of the company/firm shall be to undertake survey, loss assessments and related jobs.
10. Any changes in license details should be duly reported within 15 days to IRDAI for grant of modified license by the Authority. Affidavit should be provided on behalf of the firm.
11. An affidavit of Rs. 10/- duly notarized on non-judicial stamp paper is required to be scanned and attached for renewal of licenses in the form of a declaration as contained against S.No. of 6 of the application form.
12. An email notification will be sent to the applicant on successful submission of the application form.
13. Any change in the information submitted to the authority must be informed to the authority within 15 days from date of the change.

Form - IRDAI - 6 - AF

1. Current Corporate Surveyor and Loss Assessor License Details

(1) SLA no.

.....

(2) Date of Expiry

.....

(3) Name of the Firm/Company

.....

(4) Address of Company/Firm

.....

2. Departments allocated to directors/partners

Dept

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

License details of directors/partners and level
of membership

3. It is requested that the above license may be renewed for a further period of three years for the following classes of insurance and level of membership allotted to directors/partners:

Dept

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

License details of directors/partners and level
of membership

4. It is hereby declared that-

(1)

No director/ partner of our Company/ Firm has been found to be of unsound mind by a Court of competent jurisdiction;

(2)

No director/ partner of our Company/ Firm has been found guilty of criminal misappropriation or criminal breach of trust, or cheating or forgery, or an abetment of or attempt to commit any such offence by a Court of competent jurisdiction;

(3)

No director/ partner of our Company/ Firm has been found guilty of or to have knowingly participated in or connived at

any fraud, dishonesty or misrepresentation against an insurer or an insured in the course of any judicial proceedings relating to any policy of insurance or the winding up of an insurer or in the course of an investigation of the affairs of an insurer; and

(4)

No director/ partner of our Company/ Firm is a minor.

(5)

No director/ partner of our Company/ Firm shall violate the code of conduct specified by the regulations made by the Authority.

(6)

All director(s)/ partner(s) of our Company/ Firm possess the requisite qualifications and practical training as specified by the regulations made by the Authority.

(7)

All director(s)/ partner(s) of our Company/ Firm have passed such examination as specified by the regulations made by the Authority.

5. It is declared that each one of the Director(s) / partner(s) of the firm who was a partner/ Director when the above mentioned license was issued and who is now a Director(s) / partner(s) continues to satisfy the requirements of clause (D) of subsection (1) of Section 64UM of the Act.

6. It is also declared that all the director(s)/partner(s) whose address, date of birth have been submitted

(1)

have been in practice as Surveyor and Loss Assessor on 26th October, 1968, or

(2)

hold a degree of a recognized university in any branch of engineering, or

(3)

be a fellow or an associate member of the Institute of Chartered Accountants of India or Institute of Cost and Works Accountants of India, or

(4)

possess actuarial qualifications or holds a degree or diploma of any Indian University or Institute in relation to Insurance, or

(5)

hold a diploma in insurance granted or recognized by the Government, or

(6)

possess any of the technical qualifications mentioned in Rule 56A.

(The above declaration shall pre-populate in the online licensing process)

[N.B. 1. - In the case of each of the director/partner who was not a partner/ Director on the date of last application for license where he claims to come under item (a) above, and is not eligible to come under any of the items (b) to (f) above, a declaration as given in the Insurance Rules, 1939 and sworn before a Magistrate or a Notary Public should be forwarded with this form; and where he claims to come under any one of the items (b) to (f) above, either the original diplomas/certificates with one of the attested copy each, or copies of the original diplomas/certificates duly attested by a Magistrate or Notary Public should be enclosed. Where original diplomas/certificates are sent, they will be returned after perusal, but no responsibility can be accepted for loss or damage of such originals.

7. Details of Directors/Partners

(1)

Name of the director/partner

.....

(2)

SLA no.

.....

(3)

Date of Expiry

.....

Membership details of Institute:

(4)

Membership ID card No

.....

(5)

Date of Issue of ID card

.....

(6)

Level of membership allotted

.....

(7)

Name

.....

(8)

Address

.....

(9)

Departments allocated

Dept

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

License details and level
of membership

Note. - Where a director/ partner does not already hold an individual license then an application (in FORM No.- IRDAI - 1-AF - Application for New License) from such a person should also be submitted.]

(10)

Last Employment details

Name of Employer

Nature of Organization

Nature of Work

Period of employment

From Date

To Date

(Govt./Semi-government/ Private Firm, insurance
company, corporate surveyor, PSU, others)

(Insurance survey related, Others)

8. Declaration

I solemnly declare and confirm that the particulars given above are true to the best of my knowledge and belief.

Signature of the applicant.....

(Digital Signature)

Name of the Company/Firm:

Corporate Surveyor License No :

Seal of the Company/ Firm

Form - IRDAI - 7 LF

[See Regulation 6(5)]

Not Transferable

Insurance Regulatory and Development Authority of India

License No.

Renewal of License to Act as a Surveyor and Loss Assessor Under the Insurance Act, 1938 (Individual)

Mr./ Mrs./ Miss.....

Address

* working as sole proprietor of having Membership no of the Institute and .having paid the specified fee and having made the necessary declaration, his/her License No. dated to act as a Surveyor and Loss Assessor is hereby renewed upto day of 20

Name are allocated the following departments and category:

Dept

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

Level

of membership

Hyderabad, dated the DD-MM-YYYY

Signature of License Holder.....

Designated Person

Insurance Regulatory and Development Authority of India

Notes. - 1. If it is desired to renew this license for a further period, the procedure stated in these Regulations shall be followed, and an application for renewal should reach the Authority at least thirty days before the license expires.

2. This license authorizes the license holder to act as a Surveyor and Loss Assessor for any registered insurer and therefore, no identifying mark or note of any description by which the identity of an insurer might be established should be placed on the license.

3. No correction in this license shall be valid unless initiated by the Designated Person of the Authority.

Form - IRDAI - 8 LF

[See Regulation 6(5)]

Not Transferable

Insurance Regulatory and Development Authority of India

License No.

Renewal of License to act as a Surveyor and Loss Assessor Under the Insurance Act, 1938 (CORPORATE)

Name :

Address:

having paid the specified fee and having made the necessary declaration is hereby authorized under Section 64UM of the Insurance Act, 1938 to act as a surveyor/loss assessor for three years from DD-MM-YYYY.

This License will expire on DD-MM-YYYY.

The Directors / Partners are allocated the following departments and categories:-

SI No.

Name of Director

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

License and Membership details of director

Hyderabad, dated the DD-MM-YYYY

Signature of the license Holder.....

Seal of the Firm/Company.....

.....

Designated Person

Insurance Regulatory and Development Authority of India

Notes. - 1. If it is desired to renew this license for a further period, the procedure stated in these Regulations shall be followed, and an application for renewal should reach the Authority at least thirty days before the license expires.

2. This license authorizes the license holder to act as a Surveyor and Loss Assessor for any registered insurer and therefore, no identifying mark or note of any description by which the identity of an insurer might be established should be placed on the license.

3. No correction in this license shall be valid unless initialled by the Designated Person of the Authority.

Form - IRDAI-9-AF

[See Regulation 9(1)]

Application for Duplicate License

1. I regret to inform you that my/ our license no. expiry date DD-MM-YYYY has been
Lost

Destroyed

Mutilated

by the following circumstances

.....

2. The fees as specified by the Authority from time to time is also paid below for issue of duplicate license.(Fee Payment: Net Banking/Demand Draft/NEFT/RTGS)

3. I/ We , therefore request the Authority to kindly issue a duplicate license in light of the circumstances explained above.

Declaration

I/We, solemnly declare and confirm that the particulars given above are true to the best of my knowledge and belief.

In case the original license is traced, I/We assure you that the same shall be returned to the authority.

.....

Signature of the Applicant

Date:

Place:

Encl.: mutilated pieces, if any, in possession of the person making the application.

Form - IRDAI-10-LF

[See Regulation 9(3)]

Not Transferable

License No.....

Duplicate License

Name Address: House No.

Street..... Town/ District StatePin code..... having paid fee as specified by the

Authority from time to time and having made the necessary declaration of having lost/destroyed/mutilated the license is hereby authorized under Section 64UM of the Insurance Act, 1938 to continue to act as Surveyor and Loss Assessor for the balance period till expiry of the license.

This License will expire on DD-MM-YYYY

The Surveyor and Loss Assessor will continue to work for the following departments:

Dept

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

level of membership

Hyderabad, dated the 20.....

Signature of the license Holder.....

Seal of the Firm/Company.....

.....

Designated Person

Insurance Regulatory and Development Authority of India

Notes. - 1. If it is desired to renew this license for a further period, the procedure stated in these Regulations shall be followed, and an application for renewal should reach the Authority at least thirty days before the license expires.

2. This license authorizes the license holder to act as a Surveyor and Loss Assessor for any registered insurer and therefore, no identifying mark or note of any description by which the identity of an insurer might be established should be placed on the license.

3. No correction in this license shall be valid unless initialled by the Designated Person of the Authority.

Form - IRDAI-11

[See Regulation 16(13)]

Format for Keeping Records for 3 Years

1. Name of Surveyor

2. License Details

Current SLA No

Date of Expiry

DD-MM-YYYY

S.No.

Name and address of the Insured

Name & Address of the Insurer

Policy No.

Dept in which the claim falls

Date of allocation of survey work

Date of survey/ inspection

Date of submission of survey report

Amount of Claim assessed

Survey Fee Details (Amount/ date of payment)

Note. - The survey reports, photographs, etc. as mentioned in regulations 16(13) shall be kept separately.

Form - IRDAI-12

[See Regulation 20(2)]

Format for Annual Submission of Return to the Authority

1.

Name of Surveyor

.....

2.

License Details

Current SLA No

.....

Date of Expiry

DD-MM-YYYY

3.

Qualifications acquired in the past 1 year

(Upload docs for proof)

(1) Academic / Professional

.....

(2) Insurance

.....

(3) Training Attended

.....

(Nature - Duration for all of the above)

4. No. of surveys done in last financial year and the name of insurers: 20 _ 20 _

Insurers

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

Total

A

B

C

D

5. No. of surveys done in last financial year as surveyor appointed by the policyholders : 20 _____ 20 _____

Name of the Policy holder

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

Total

A

B

C

D

6. Income from other risk assessment assignments during the last financial year

Risk Assessment carried out with (person/legal
entity)

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

Total

A

B

C

D

7. Quantum of losses assessed in last financial year:

20XX.

-20XX

Fire

No.

Marine cargo

No.

Marine Hull

No.

Engg

No.

Motor

No.

Misc

No.

Crop Insurance

No.

LOP

No.

> 10 Lacs

> 1 Lac

> 10 Lacs

> 2.5 Lacs

> 50,000

> 1 Lac

> 50,000

> 10 Lacs

1 - 10 Lacs

25,000 - 1 Lac

2.5 - 10 Lacs

50,000 - 2.5 Lacs

10,000 - 50,000

25,000 - 1 Lac

10,000 - 50,000

1 - 10 Lacs

0 - 1 Lac

0 - 25,000

0 - 2.5 Lacs

0 - 50,000

0 - 10,000

0 - 25,000

0 - 10,000

0 - 1 Lac

Total

8. Declaration

I solemnly declare and confirm that the particulars given above are true to the best of my

knowledge and belief.

Signature of the applicant.....

Date:

Place:

Form - IRDAI-13

Prescribed Format for Enrolment as Trainees

[See Regulation 17(1)]

Instructions:

(1)

It is mandatory to enclose copy of the Student membership ID issued by the Institute.

(2)

It is mandatory to attach certificate of trainer/surveyor firm along with the enrolment application.

(3)

Enrolment applications will be processed by IRDAI only after receiving online submission of certificate from the selected trainer/Surveyor firm by trainee.

(4)

Any change in the information submitted to the authority must be informed to the authority within 15 days from date of the change.

Details of the Applicant

1.

Name

.....

2.

Membership Details of the Institute:

Student Membership no

3.

Permanent address

.....

4.

Present address

.....

5.

Communication details

Phone Office

Phone Res.

Fax

Mobile

Email ID

Alternate Email ID

6. Date of Birth

?.....

7. Nationality

?.....

8. Qualifications acquired (Upload docs for proof)

(1) Academic / Professional

?.....

(2) Insurance

?.....

(3) Training Attended

?.....

(Nature - Duration for all of the above)

9. Occupation status:

Student

Professional

Business

Employee

Service

Housewife

Others ...

10. Employment details:

(1)

Whether applicant is currently employed? Yes/No

(2)

If yes, provide details below and also attach scanned copy of NOC from employer

Name of Employer

Nature of Organization

Nature of Work

Period of employment

From Date

To Date

(Govt./Semi-govt/ Private Firm, insurance
company, corporate surveyor, PSU, others)

(Insurance survey related, Others)

(3)

Details of any other business/profession carried out:

Name of Firm

Designation

Nature of Business

11. Options for departments, in which you wish to be trained and granted surveyor license

1.

_____ 2. _____ 3. _____

4. _____ 5. _____ 6. _____

7.

_____ .8. _____

12.

Name of Trainer Surveyor :

.....

SLA No.

.....

Membership Details of the Institute:

.....

Membership ID card No

.....

Date of Issue of ID card

.....

Date of expiry

.....

Dept

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

Level of Membership

Present Address

Communication details.

Phone Office

Phone Res.

Fax

Mobile

Email ID

Alternate Email ID

13. Declaration

I solemnly declare and confirm that the particulars given above are true to the best of my knowledge and belief.

Signature of the Applicant

Date:

Place:

Form -IRDAI-14

Format of Certificate From Trainer Surveyor Giving Acceptance to Impart Training

[See Regulation 17(1)]

[Important Instructions: This form needs to be filled by trainer after receiving automated notification regarding enrolment of the trainee surveyor]

1. I, _____ (name of Surveyor) employee/director/partner of M/s. _____ (name of the Corporate Surveyor) and bearer of Surveyor and Loss Assessor License no. _____ & Membership No _____ certify that Mr. / Ms. _____ is enrolled for training as a trainee surveyor in the following department/s:

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

2. I have verified the information pertaining to educational qualifications and certify that they are true and correct. I am a Member of the Institute and hold a valid Surveyor and Loss Assessor license issued by the Insurance Regulatory And Development Authority of India for the departments I am imparting practical training.

3. I undertake to impart practical training to the best of my knowledge and ability and agree to supervise his/ her performance on a weekly basis, based on records to be maintained by the trainee and keep the Insurance Regulatory and Development Authority of India informed about the progress by way of submission of quarterly reports in the form and manner prescribed.

Surveyor's License No

.....
Date of Expiry

.....
Address

.....
Phone Office

Phone Res.

Fax

Mobile

Email ID

Alternate Email ID

Signature of Trainer

Date:

Place:

Form -IRDAI-15

Quarterly Report

[See Regulation 17(4)]

Important Instructions:

Format For Daily Diary

(To Be Maintained By Trainer Surveyor and Submitted Online in Soft Form on Quarterly Basis)

Report for the Quarter ending: _____(MM/YYYY)

1. Name of Trainee

2. Address

3. Communication

Phone Office

Phone Res.

Fax

Mobile

Email ID

Alternate Email ID

4. Name of Trainer Surveyor / Corporate Surveyor :

Current License No:

Date of expiry:

5. Membership Details

Dept

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc

Crop Insurance

LOP

Level of Membership

6. Date of commencement of training :

Department

Contents of training imparted (Upload in soft
form and Attach supporting documents wherever possible)

Signature of Trainer

Date:

Place:

Form-IRDAI-16

Training Completion Certificate

[See Regulation 17(4)]

Important Instructions:

To Be Issued By Trainer for Each Trainee, After Completion of the Training

SLA No. << Trainer Name>> << Trainer Address>>

Date of Expiry:

Trainer Qualification

Membership ID No.....

Level of Membership

List of department in which trainer is licensed

This is to certify that Mr/Ms had undergone training with me in department/s < List of departments with check box> From < date> to < date> for a period of 12 months/6 months. During the process he/she learnt various aspects of < list of departments> for surveying and loss assessing.

During the period of training I found him/her hardworking, sincere, and understanding. In my opinion he/she is fully conversant with all the techniques of Survey and I wish him/her all the best in his/her all future career,

< Additional remark if any>

< Trainer Name & Signature>

Surveyor & Loss Assessor

SLA No..... Date of Expiry.....

Membership No..... Level of Membership.....

Form-IRDAI-17 AF

[See Regulation 3(4)(a)]

Application Format for Grant of Modified License

Individual Surveyor

Important Instructions:

Any change in the information submitted to the Authority must be informed to the Authority within 15 days from date of the change, (attach copies of documents as proof)

Existing Details:

1. Name / Name of Firm/Company (wherever applicable).....

Remarks

2. SLA NO..... Expiry date..... Membership ID No..... Level of Membership.....

3. Present Address :

Address 1:

Address 2:

Address 3:

City/Town/Village : District: State:

Country:..... Pincode:

4. Remarks:.....

Changes Being Requested for:

1. Change in Licensee Name

2. Incorporation of Sole Proprietary firm's Name :

Name of Firm :

Remarks:.....

3. Grant of Additional Departments :

Depts

Fire

Marine cargo

Marine Hull

Engg

Motor

Misc
Crop Insurance
LOP
Select

4. Correction in the license already issued (where there is a tyrographical error in the license issued):
5. Change in level of Membership allotted by the Institute
From To.....(Attach soft copy of Membership certificate issued by the Institute indicating such change/s and reasons thereof)
6. Change in Personal information :
Phone No.(Res)Phone No. (Office):
Mobile No.e-mail:
Alternate e-mail: Remarks:
Signature of the applicant
Place....
Date.....
Form-IRDAI-18 AF
[See Regulation 4(6)(2)]
Application Format for Grant of Modified License Corporate Surveyor
Important Instructions:
Any change in the information submitted to the authority must be informed to the authority within 15 days from date of the change, attach copies of documents as proof.
Select Modification Type
1. Name /Name of Firm/Company
Remarks
2. Corporate Surveyor License No..... Expiry date.....
3. Corporate/Registered Office Address :
Address 1: Address 2: Address 3:
City/Town/Village : District: State:.....
Country:..... Pincode:
Remarks:.....
4. Branch Office Address :
Address 1: Address 2: Address 3:
City/Town/Village : District: State:
Country:..... Pincode: Remarks:.....
5. Change in Director/Partner Details :
Add new Director/Partner
Remove existing Director/ Partner
Modify existing Director/ Partner
6. Change in employee :
Add new employee/s
Remove existing employee/s
Change in Share holding pattern and Promoter(s)
7. Correction in the license already issued (where there is a tyrographical error in the license issued):
8. Change in the level of Membership allotted by the Institute to the director(s)/partner(s)
From To.....(Attach soft copy of Membership certificate issued by the Institute indicating such change/s and reasons thereof)
Opening of branch offices/any other office by
corporate surveyor
9. Change in Personal information :
Phone No.(Res) Phone No. (Office): Mobile No.
e-mail: Alternate e-mail:

Remarks:

Signature of the director/partner

Seal of the company

Date

Place:

Related AI tags, queries and research notes

Translation